Brief of *amicus curiae* in all cases was filed by *A. F. Summer,* Attorney General, *Delos Burks,* First Assistant Attorney General, *William A. Allain,* Assistant Attorney General, and *Charles B. Henley* for the State of Mississippi. Briefs of *amici curiae* in Nos. 43, Orig., 46, Orig., and 47, Orig., were filed by *Melvin L. Wulf* for the American Civil Liberties Union, and by *John R. Cosgrove* for Citizens for Lowering the Voting Age et al. Brief of *amicus curiae* in Nos. 43, Orig., and 46, Orig., was filed by *William A. Dobrovir, Joseph L. Rauh, Jr., David Rubin, Stephen I. Schlossberg, John A. Fillion, Nathaniel R. Jones, Clarence Mitchell,* and *J. Francis Pohlhaus* for the Youth Franchise Coalition et al. Briefs of *amici curiae* in No. 43, Orig., were filed by *Joseph A. Califano, Jr.,* and *Clifford L. Alexander* for the Democratic National Committee, and by *Messrs. Jones, Mitchell,* and *Pohlhaus* for the Department of Armed Services and Veterans Affairs of the National Association for the Advancement of Colored People. Brief of *amicus curiae* for the State of Indiana in support of plaintiff in No. 44, Orig., was filed by *Theodore L. Sendak,* Attorney General, *Richard C. Johnson,* Chief Deputy Attorney General, and *William F. Thompson,* Assistant Attorney General, joined by the Attorneys General for their respective States, as follows: *Joe Purcell* of Arkansas, *Robert M. Robson* of Idaho, *Jack P. F. Gremillion* of Louisiana, *Clarence A. H. Meyer* of Nebraska, *Warren B. Rudman* of New Hampshire, *Robert Morgan* of North Carolina, *Helgi Johanneson* of North Dakota, *Paul W. Brown* of Ohio, *Gordon Mydland* of South Dakota, *Vernon B. Romney* of Utah, *Slade Gorton* of Washington, *Chauncey H. Browning, Jr.,* of West Virginia, and *James E. Barrett* of Wyoming. Brief of *amicus curiae* in No. 47, Orig., was filed by *Andrew P. Miller,* Attorney General, and *Anthony F. Troy* and *Walter A. McFarlane,* Assistant Attorneys General, for the Commonwealth of Virginia.

MR. JUSTICE BLACK, announcing the judgments of the Court in an opinion expressing his own view of the cases.

In these suits certain States resist compliance with the Voting Rights Act Amendments of 1970, Pub. L. 91–285, 84 Stat. 314, because they believe that the Act takes away from them powers reserved to the States by the Constitution to control their own elections.[1] By its terms the Act does three things. First: It lowers the minimum age of voters in both state and federal elections from 21 to 18. Second: Based upon a finding by Congress that literacy tests have been used to discriminate against voters on account of their color, the Act enforces the Fourteenth and Fifteenth Amendments by barring the use of such tests in all elections, state and national, for a five-year period. Third: The Act forbids States from disqualifying voters in national elections for presidential and vice-presidential electors because they have not met state residency requirements.

For the reasons set out in Part I of this opinion, I believe Congress can fix the age of voters in national elections, such as congressional, senatorial, vice-presidential

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[1] In Nos. 43, Orig., and 44, Orig., Oregon and Texas, respectively, invoke the original jurisdiction of this Court to sue the United States Attorney General seeking an injunction against the enforcement of Title III (18-year-old vote) of the Act. In No. 46, Orig., the United States invokes our original jurisdiction seeking to enjoin Arizona from enforcing its laws to the extent that they conflict with the Act, and directing the officials of Arizona to comply with the provisions of Title II (nationwide literacy test ban), § 201, 84 Stat. 315, and Title III (18-year-old vote), §§ 301, 302, 84 Stat. 318, of the Act. In No. 47, Orig., the United States invokes our original jurisdiction seeking to enjoin Idaho from enforcing its laws to the extent that they conflict with Title II (abolition of residency requirements in presidential and vice-presidential elections), § 202, 84 Stat. 316, and Title III (18-year-old vote) of the Act. No question has been raised concerning the standing of the parties or the jurisdiction of this Court.

and presidential elections, but cannot set the voting age in state and local elections. For reasons expressed in separate opinions, my Brothers DOUGLAS, BRENNAN, WHITE, and MARSHALL join me in concluding that Congress can enfranchise 18-year-old citizens in national elections, but dissent from the judgment that Congress cannot extend the franchise to 18-year-old citizens in state and local elections. For reasons expressed in separate opinions, my Brothers THE CHIEF JUSTICE, HARLAN, STEWART, and BLACKMUN join me in concluding that Congress cannot interfere with the age for voters set by the States for state and local elections. They, however, dissent from the judgment that Congress can control voter qualifications in federal elections. In summary, it is the judgment of the Court that the 18-year-old vote provisions of the Voting Rights Act Amendments of 1970 are constitutional and enforceable insofar as they pertain to federal elections and unconstitutional and unenforceable insofar as they pertain to state and local elections.

For the reasons set out in Part II of this opinion, I believe that Congress, in the exercise of its power to enforce the Fourteenth and Fifteenth Amendments, can prohibit the use of literacy tests or other devices used to discriminate against voters on account of their race in both state and federal elections. For reasons expressed in separate opinions, all of my Brethren join me in this judgment. Therefore the literacy-test provisions of the Act are upheld.

For the reasons set out in Part III of this opinion, I believe Congress can set residency requirements and provide for absentee balloting in elections for presidential and vice-presidential electors. For reasons expressed in separate opinions, my Brothers THE CHIEF JUSTICE, DOUGLAS, BRENNAN, STEWART, WHITE, MARSHALL, and BLACKMUN concur in this judgment. My Brother